

I. Request

1. On August 10, 2023, the Secretary of State for the Presidency of the Council of Ministers requested the National Data Protection Commission (CNPD) to issue an opinion on the draft DL 316/XXIII/2023, which completes the transposition of Directive (EU) 2021/2118 concerning mandatory civil liability insurance for motor vehicles.

2. The CNPD issues this opinion within the scope of its powers and competencies as an independent administrative authority with the authority to oversee the processing of personal data, granted by paragraph c) of number 1 of Article 57, paragraph b) of number 3 of Article 58, and number 4 of Article 36, all of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation, in conjunction with the provisions of Article 3, number 2 of Article 4, and paragraph a) of number 1 of Article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the domestic legal order.

II. Analysis

3. Directive No. 2009/103/EC of the European Parliament and of the Council, of September 16, 2009, concerning civil liability insurance arising from the use of motor vehicles, has been transposed into national law through Decree-Law No. 291/2007, of August 21, which approved the regime of the mandatory civil liability insurance system for motor vehicles (SORCA).

4. The SORCA is a fundamental component of safety in road traffic, ensuring the protection of those injured in a traffic accident, guaranteeing that, in the event of an accident, the civil liability of the party responsible for the incident is covered by an insurance company. This component is complemented by the Automobile Guarantee Fund (FGA), a public mechanism that ensures compensation for damages in cases where the obligation to take out this insurance has not been fulfilled or the identity of the party responsible for the incident is unknown.

5. Directive (EU) 2021/2118 of the European Parliament and of the Council, of November 24, 2021 (Directive 2021/2118), amended Directive 2009/103/EC, thus requiring the amendment of Decree-Law No. 291/2007, of August 21.

6. The present Draft Decree-Law (hereinafter referred to as the Draft) aims to make the third amendment to Decree-Law No. 291/2007, of August 21, amended by Decree-Law No. 153/2008, of August 6, and by Law No. 32/2023, of July 10. Regarding amendments that have implications for the protection of personal data, Article 2 of the Draft introduces changes to Articles 20, 79, and 81.

7. The amendment to Article 20 essentially renames the tariff certificate, which is now referred to as the claims history declaration, and alters the prerequisites for its issuance.

8. However, the previous wording stipulated that the claims listed in the declaration corresponded to accidents involving civil liability caused by the vehicle or vehicles covered by the insurance contract during the five years prior, and the new wording introduces a slight change with significant consequences for the processing of personal data.

9. Indeed, the amendment stipulates that the claims history declaration must correspond to claims involving civil liability caused by the use of the vehicle covered by the insurance contract for at least the five years prior to the contractual relationship.

10. Now, the wording of Article 16 of Directive 2021/2118 refers to the Member States the determination of the period, which has as its only limit that it must not be less than five years from the date of the contract. This does not mean, nor can it mean, that in its transposition this indefinite period is maintained, as it contradicts the principle of data retention limitation (cf. paragraph e) of number 1 of Article 5 of the GDPR).

11. Furthermore, the explanatory memorandum makes no reference to the amendment of this period, seeming to indicate that it is merely an oversight.

12. Thus, given the consequences it entails, particularly regarding the increase in premium amounts, which does not seem to be the legislative intent, it is recommended to define a concrete period of five years, removing—

13. The impact on the protection of personal data of this legislative amendment also concerns the oversight of compliance with the insurance obligation, as provided in the new wording of Article 81,

which reinforces the requirements regarding the processing of personal data from digital license plate recognition control systems.

14. This article constitutes the legal basis that legitimizes the processing of personal data resulting from these control systems (cf. paragraph c) of number 1 of Article 6 of the GDPR).

15. However, number 3 of the same Article 6 suggests that the law creating the legal obligation should define the essential elements of that processing, namely, the categories of personal data processed, the entities to whom the data may be transmitted, the limits that the processing of personal data must adhere to, and the necessary procedures to ensure the legality and fairness of the processing.

III. Conclusion

16. In accordance with the terms and grounds set forth above, the CNPD issues this opinion, recommending:

- a) The Draft;
- b) The specification of the essential elements of the processing, in accordance with number 3 of Article 6 of the GDPR.

Approved at the meeting of August 22, 2023

Paula Meira Lourenço (President)